

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:
Date Purchased:

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IMAN KAHLIL,

SUMMONS

Plaintiff,

-against-

Plaintiff designates
KINGS County as the
place of trial
names being
The basis of venue is:
CPLR 504 (3)

CITY OF NEW YORK, Lt. SALMAN ASGHAR, P.O.
ANTHONY VILLACIS and OFFICERS JOHN AND
JAMES DOE, named fictitious and meant to designate
additional offending officers presently unknowable by
Plaintiff,

Defendants.

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To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and
serve a copy of your answer, or, if the complaint is not served with this summons, to
serve a notice of appearance on the Plaintiff's attorneys within twenty days after the
service of this summons, exclusive of the day of service, where service is made by
delivery upon you personally within the state, or within 30 days after completion of
service where service is made in any other manner. In case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the
complaint to be assessed by the Court.

Dated: Bronx, N.Y.

September 27, 2019



By: **JONATHAN L. GLEIT, ESQ.**
Attorney for Plaintiff

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To:
CITY OF NEW YORK CORPORATION COUNSEL
100 Church Street, 4th Floor, Law Dept.
New York, New York 10007

Lt. Salman Asghar, Tax ID XXX426, P.O. Anthony Asghar, Shield 19084 of the 62nd Precinct
1925 bath Ave., Brooklyn NY 11214

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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IMAN KAHLIL,

Index No.:

Plaintiff,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, Lt. SALMAN ASGHAR, P.O.
ANTHONY VILLACIS and OFFICERS JOHN AND
JAMES DOE, names being fictitious and meant to designate
additional offending officers presently unknowable by
Plaintiff,

Defendants.
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Plaintiff, by his attorney, Jonathan L. Gleit, Esq., complaining of the Defendants,

respectfully alleges, upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF THE
PLAINTIFF IMAN KAHLIL UNDER 42 USC § 1983 AND AS APPLICABLE TO ALL
FOLLOWING CAUSES OF ACTION

1. At the time of the commencement of this action, plaintiff IMAN KAHLIL was

and still is a resident of the County of Kings, City and State of New York.
2. That the causes of action alleged herein arose in the County of Kings, City and

State of New York.

3. That at all times herein mentioned, Defendant CITY OF NEW YORK was, and still is, a Municipal Corporation and body politic, duly formed, organized and existing under and by virtue of the laws of the State of New York.
4. That the CITY OF NEW YORK maintains a Police Department.
5. That on and about July 5, 2018, Lt. SALMAN ASGHAR was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.
6. That on and about July 5, 2018, at approximately 7 P.M., Lt. SALMAN ASGHAR was working and acting within the scope of his employment as a Police Officer, and under the color of law.
7. That on and about July 5, 2018, P.O. ANTHONY VILLACIS was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.
8. That on and about July 5, 2018, at approximately 7 P.M., P.O. ANTHONY VILLACIS was working and acting within the scope of his employment as a Police Officer, and under the color of law.
9. That on and about July 5, 2018, OFFICERS JOHN AND/OR JAMES DOE, whose names are presently unknowable by Plaintiff, but are necessarily known to Defendants by virtue of their involvement with the arrest and continued insults visited described

herein upon Plaintiff, were employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

10. That on and about July 5, 2018, at approximately 7 P.M., OFFICERS JOHN AND/OR JAMES DOE were working and acting within the scope of their employment as a Police OFFICERS, and under the color of law.

**ALLEGATIONS WITH RESPECT TO PLAINTIFF'S FALSE ARREST AND
UNLAWFUL DETENTION**

11. That at approximately 6 PM, Plaintiff IMAN KAHLIL did call 911 as a victim of domestic violence requesting police assistance.

12. That in response to the aforesaid emergency call, the defendant Officers did appear at Plaintiff's residence.

13. That on or about July 5, 2018 at approximately 7 P.M., at or near 8314 19th Street, Brooklyn, New York, the Plaintiff IMAN KAHLIL was improperly arrested and confined without knowledge of warrant, without privilege, proper authority or justification, having no reason in law or in fact to arrest or confine IMAN KAHLIL.

14. That the Defendants, their agents, servants and/or employees arrested the Plaintiff IMAN KAHLIL without any basis in law or fact and without reasonable, probable or just cause or justification.

15. That the defendants, their agents, servants and/or employees arrested the Plaintiff IMAN KAHLIL without any basis in law or fact, by making false accusations against her, when they knew, or in the exercise of reasonable care, should have known they were false.

16. That Defendants, their agents, servants and/or employees continued to detain Plaintiff IMAN KAHLIL and threaten and deny her freedom after they knew, or should have known, she was innocent of all charges being alleged against him.

17. That the Defendants, their agents, servants and/or employees unlawfully arrested, detained, imprisoned and searched the Plaintiff IMAN KAHLIL, who was aware of her unlawful detention and confinement and took her property without any basis in law or fact, thereby causing fright, shock, emotional distress and physical consequences.

18. That all criminal charges brought against Plaintiff, which were brought under arrest number K18640001 in the Criminal Court of the City of New York, Kings County regarding the incidents of July 5, 2018, were dismissed when the District Attorney of

Kings County, by Assistant District Attorney Geneva Johnson, Declined to Prosecute Plaintiff due to insufficient evidence to support the criminal charges asserted by Defendants.

19. The aforesaid wrongful detention continued until July 6, 2018 at approximately 4:00 P.M..

20. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of arresting innocent citizens and engaging in a policy and procedure of arresting persons upon pretext and /or the fabrication of evidence, without any probable cause or reasonable basis to do so for nefarious, unlawful reasons such as in retaliation for lawful behaviors unreasonably deemed to be disrespectful of Police Officers, and for the fulfillment of arrest quotas, for employment advancement opportunities, to seek overtime pay, and to subjugate minority population, without reprimand to the offending officers.

21. That said illegal and unlawful arrests without reasonable or probable cause are a matter of policy and record and openly acknowledged or known by the defendants, yet condoned without any reprimand of the offending officers, referral to the District Attorney or Federal Law Enforcement officials for criminal prosecution, or even bone fide internal investigation to deter actions like those complained of herein.

22. Said policy, practice and procedure of having arrest quotas, euphemistically known as productivity goals, which result in the false arrests of innocent persons is exhibited, for instance, in the November 1, 2011 conviction of New York Police Department Det. Jason Arbeeny, whereat Justice Gustin Reichbach commented on the evidence presented by several witnesses that officers were expected to make certain arrest goals.

23. Additionally in the case of Floyd, et al. v. City of New York, et al., In the Southern District of New York Case 08 Civ.1034, New York City Police Officer Adhyl Polanco testified in open court and under oath that the NEW YORK CITY POLICE DEPARTMENT routinely arrest primarily minority populations without a legal reason to do so, and are required or expected to do so, to satisfy arrest quotas. Said arrest quotas lead to a practice and procedure of, for instance, arresting persons for conduct that is not criminal.

24. Additionally, Officer Craig Matthews presented evidence in federal court that he was subject to retaliation for reporting said quota system at the 40th Precinct in 2009 and Officers Pedro Serrano and Adrain Schoolcraft presented evidence in recorded form of the use of arrest quotas by the New York City Police Department..

ALLEGATIONS WITH RESPECT TO PLAINTIFF'S FOR VIOLATIONS OF
RELIGIOUS FREEDOMS

25. Plaintiff is a practitioner of the Muslim faith.

26. According to the tenets of their Muslim faith, many Muslim women believe they are required to wear headscarves, known as hijabs, in front of any man who is not their immediately family member. To decide to wear the hijab is a lifelong decision, and a woman's hijab becomes a part of her.

27. If a Muslim woman who wears a hijab is arrested in New York City, it is the policy and practice of the NYPD to force her to remove her hijab in order to be photographed, often in front of male officers and other male detainees. The photograph of her without her hijab is then saved to a database, available to anyone with access, indefinitely.

28. In 2015, the NYPD changed its policy regarding photographs at the precinct only, allegedly allowing arrestees to take identification photographs with their head coverings in place. However, despite this 2015 change in policy, many Muslim women are still required to remove their hijabs at both the precincts and central booking.

29. The 2015 change also allegedly provided an "accommodation" to Muslim women during their Booking Photograph. The alleged "accommodation" requires arrestees, regardless of the borough of arrest, to be transported to the Mass Arrest Processing Center located in Manhattan which has limited hours of operation. The process can add hours, if not days, to the arrest processing time, and is inconsistently applied.

30. At the time and place of the aforementioned arrest, Plaintiff IMAN KAHLIL's hijab was removed and when she requested that it be replaced, that request was refused by the Defendants. Thereafter, when she was transported to the 62nd Precinct, 1925 Bath Ave., Brooklyn NY 11214, her hijab was confiscated by the Defendants and Plaintiff was purposely caused to be without her hijab until after her subsequent transportation to Kings County Central Bookings, where, fortuitously, another detained Muslim woman tore her own hijab in half so that Plaintiff could be covered as the free exercise of her religion, her sincerely held religious beliefs, her self-esteem and sense of decency required.

31. Plaintiff IMAN KAHLIL was arrested and processed after the 2015 policy change. She was not offered an accommodation of being transported to the

processing center and was forced by NYPD officers to remain unveiled in front of numerous men during her detention, photographing, and transportation to and initial detention at Central Booking.

32. Hence insults were visited upon Plaintiff IMAN KAHLIL in violation of the Religious Land Use and Institutionalized Persons Act, 42 U.S.C. §2000cc et seq. ("RLUIPA"); and in violation of the First, Fourth and Fourteenth Amendments of the United States Constitution, and for violations of New York state law.

33. The experience of the Plaintiff and the humiliation of being forced to remain unveiled in front of male strangers has happened to significant numbers of Muslim women who are arrested in the City of New York.

34. Although Defendants maintain a policy and procedure for photographing arrestees in both police precincts and Central Booking, which, upon information and belief are indefinitely stored and available to all who search the database they are maintained in, there is not policy or procedure requiring the removal of hijabs worn by women of the Muslim faith.

35. For years prior to 2015, the NYPD's Religious Head Covering Arrest Policy provided a discretionary policy for the removal of religious head coverings for

photographs taken during post-arrest-processing at both the precinct and at central booking.

36. In 2015, the NYPD issued Interim Order 29 (hereinafter referred to as "IO 29"), which revised the NYPD's policy as it related to the Booking Photograph, targeted arrestees who refused to remove their religious head coverings, providing them the option to take the Booking Photograph at the Mass Arrest Processing Center (MAPC) located at One Police Plaza in Manhattan regardless of the borough of their initial arrest.

37. After the 2015 change, arrestees still must remove their religious head coverings for photographs taken at central booking, without same gender photographers or private rooms, or be transported to the MAPC.

38. IO 29 further states that "the photograph taken at the command of arrest for the Prisoner Movement Slip is not considered an official department photograph and that that photograph is taken for identification purposes only and may be taken while the arrestee wears the religious head covering."

39. The NYPD continues an ad-hoc practice of requiring the removal of religious head coverings for post-arrest processing photographs at both the precincts and at central booking.

40. The NYPD's alleged policy allows officers at the Identification Photograph to use

individual discretion as to whether or not they would allow a Muslim woman to keep her hijab on during an Identification Photograph.

41. However, during the photographing, the NYPD often refuses to accommodate Muslim women though it does not cause an undue burden at central booking. Instead, the only accommodation provided, though inconsistently, is allowing women to be photographed at MAPC.

42. Countless women of the Muslim Faith have been subjected to the same or similar violations as those insults described herein and visited upon the Plaintiff IMAN KAHLIL. As a small example, Gehad Elsayed was subjected to the same or similar violations in June of 2012 also at the 62nd Precinct, and again on March 14, 2018 at the 72nd Precinct; Laila Ibrahim was subjected to the same or similar violations on May 5, 2018 at the 114th Precinct in Astoria Queens both who brought an action in the Southern District of New York, Case 1:18-cv-10566; On September 14, 2015, Mervat Soliman filed suit in response to her January 2015 arrest during which she requested, and was denied, a female photographer to take her arrest photograph, Soliman v. City of New York et al., 2015 WL 5343441 *3 (E.D.N.Y. March 31, 2017); On April 25, 2016, J.H. filed suit in response to her September 2015 arrest during which she was permitted to wear her

hijab for her precinct photograph, but was forced to take off her hijab her Central Booking photograph where “[a]pproximately ten NYPD police officers and five detainees—all of whom were male—were also present, J.H. v. Bratton, 248 F.Supp. 3d. 401, 406 (E.D.N.Y. 2017); n February 20, 2017, Rabab Musa filed suit in response to a September 2016 arrest during which she forced to remove her hijab and remain with her hair exposed for hours among male officers and detainees at two precincts, Rabab Musa v. City of New York et al., Index No. 151601/2017 (N.Y. Co. Sup. Ct. 2017); and many other known to the Defendants by virtue of the claims, complaints and causes of action brought by others for similar violations as those pled herein.

43. Following the decision in G.E. v. City of New York, No. 12-cv-5967 (RRM) (SLT), 2017 U.S. Dist. LEXIS 161905, 2017 WL 4357340 (S.D.N.Y. Sept. 2017), the CITY OF NEW YORK conceded that removal of a hijab was unlawful for the taking of the Identification Photograph.

44. There is no compelling governmental interest in the policy and practice maintained and promulgated by the CITY OF NEW YORK as described herein and there exists a less restrictive policy than described herein, which in any event, is applied inconsistently.

45. That no negligence or actions on the part of the Plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

46. The herein above described actions and omissions, engaged in under the color of law by the defendants, their supervisors and commanders and the CITY OF NEW YORK, sued as a person within the meaning of Title 42 U.S.C. 1983, et seq., by policy, institutionalized procedure and act, unreasonably interfered with deliberate indifference and deprived the Plaintiff IMAN KAHLIL of rights secured by the Constitution and laws of the United States, including, but not limited to the First Amendment right of freedom of expression and free exercise of religion, the Fourth Amendment right to be free from unlawful seizures of her person, the Fifth Amendment rights of due process of law and to equal protection of the laws, including the right to be free from unjustified confinement utilized by the police, the Eighth Amendment right to be free from cruel and unusual punishment, and as applicable under Title 42 U.S.C. 1983, et seq.

47. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

48. That as a result of the foregoing, the Plaintiff IMAN KAHLIL was damaged in a sum which exceeds the jurisdiction of all lower Courts.

53. That this action is being commenced within one year and ninety days after accrual of the causes of action, or within the time allowed by law.

54. That on or about July 5, 2018 at approximately 7 P.M., at or near 8314 19th Street, Brooklyn, New York, the Plaintiff IMAN KAHLIL was improperly arrested and confined without knowledge of warrant, privilege, proper authority or justification or reasonable or probable cause, having no reason in law or in fact to arrest IMAN KAHLIL.

55. That at all times herein mentioned, Defendants, their agents, servants and / or employees, deprived the Plaintiff IMAN KAHLIL of Due Process under Law.

56. That the acts of the Defendants, CITY OF NEW YORK, their agents, servants and / or employees, Lt. SALMAN ASGHAR and OFFICERS JOHN AND/OR JAMES DOE were acts of discrimination, were racist, and improper, and that the Defendants' actions amounted to False Arrest, and the Defendants were otherwise careless, reckless, wanton and negligent.

57. That the Plaintiff IMAN KAHLIL, being aware of her unjust confinement, suffered severe and serious physical, emotional trauma, damages and injuries due to the negligence, carelessness and recklessness of Defendants CITY OF NEW YORK, Lt.

SALMAN ASGHAR, P.O. ANTHONY VILLACIS and OFFICERS JOHN AND/OR JAMES DOE.

58. That during said unlawful detention, defendants took Plaintiff's property, consisting of her hijab, and refused to allow Plaintiff to replace and wear her hijab, while detained and photographed and in the presence of men, which caused her to suffer significant and severe emotional stress and damage, and was violative of the free exercise of her religion and in derogation of her self esteem and worth.

59. That all criminal charges brought against plaintiff, which were brought under arrest number K18640001 in the Criminal Court of the City of New York, Kings County regarding the incidents of July 5, 2018, were dismissed when the District Attorney of Kings County, by Assistant District Attorney Geneva Johnson, Declined to Prosecute plaintiff due to insufficient evidence to support the criminal charges asserted by Defendants.

60. That no negligence or actions on the part of the Plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

61. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

62. That as a result of the foregoing, the Plaintiff IMAN KAHLIL was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF THE
PLAINTIFF IMAN KAHLIL

63. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 62 as though more fully set forth herein.

64. That the Defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants.

65. That the Defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants in the proper and lawful arrest of individuals and the reasonable accommodation of persons religious tenets, beliefs and practices.

66. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the Defendant's negligence, Plaintiff IMAN KAHLIL was denied freedom and rights under the federal and state constitutions and received great and severe injuries

with accompanying physical and mental pain and suffering; that the plaintiff was made, and still are and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external, all of which, upon information and belief, will be permanent; that it was necessary and will be so in the future, to incur expenses for the care, treatment and attention of the Plaintiff and for the purchase of drugs and medicines, and that Plaintiff was and in the future will be prevented from attending to Plaintiff's usual avocations; all to the Plaintiff's damage in sums which exceed the jurisdiction of all lower Courts.

67. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

WHEREFORE, Plaintiff demands judgment against the Defendants on the First Second and Third Causes of Action, and inclusive of punitive damages, and attorneys fees as permitted by statute, in sums which exceed the jurisdiction of all lower Courts, together with the costs and disbursements of this action.

Dated: Bronx, N.Y.
September 27, 2019


By: JONATHAN L. GLEIT, ESQ.
Attorney for Plaintiff

IMAN KAHLIL

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To:

CITY OF NEW YORK CORPORATION COUNSEL
100 Church Street
4th Floor, Law Dept.
New York, New York 10007

Lt. Salman Asghar, Tax ID XXX426, P.O. Anthony Asghar, Shield 19084
62nd Precinct, 1925 bath Ave., Brooklyn NY 11214

ATTORNEY'S VERIFICATION

Jonathan L. Gleit, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am the attorney of record for Plaintiff,

IMAN KAHLIL

I have read the annexed

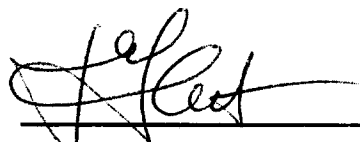
COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by myself and not Plaintiff is that Plaintiff is not presently in the county wherein the attorney for the plaintiff created this document.

DATED: Bronx, N.Y.

September 27, 2019

A handwritten signature in black ink, appearing to read 'J. Gleit', is written over a horizontal line.

JONATHAN L. GLEIT, ESQ.